NATIONAL COMPANY LAW TRIBUNAL
GUWAHATI BENCH
GUWAHATI

CP (CAA)/13/GB/2022
In CA (CAA) NO. 07/GB/2022

Coram:
Hon'ble Shri Deep Chandra Joshi Member (J): **Hearing through**
Hon'ble Shri Prasanta Kumar Mohanty, Member (T): **Video Conference**

ATTENDANCE-CUM- ORDER SHEET OF THE HEARING OF GUWAHATI BENCH OF THE NATIONAL COMPANY LAW TRIBUNAL ON 20.01.2023

In the matter of:
Abhilasha Agencies Pvt. Ltd. and Another

(Transferor Companies)

And
Singla & Jain (Engineers) Pvt. Ltd.

(Transferee Company)

Section: Under Section 230 to 232 of Companies Act, 2013

S. NO.	NAME (CAPITAL LETTERS)	DESIGNATION	REPRESENTATION	SIGNATURE
1.	MR. BIKASH SHARMA	Advocate	Petitioners	Present in Video Conference

ORDER

The Applicant is represented through respective Learned Counsel (s).

The case is fixed for pronouncement of order.

The Order is pronounced in the open court, Through Video Conferencing vide separate sheet.

Sd/-

(Prasanta Kumar Mohanty)
Member (Technical)

Sd/-

(Deep Chandra Joshi)
Member (Judicial)

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Under Section 230-232 of Companies Act, 2013

IN THE MATTER OF:

SINGLA & JAIN (ENGINEERS) PRIVATE LIMITED (SJEPL)
A Company incorporated under the Companies Act, 1956
(CIN: U45202AS1964PTC017429) having its registered
Office at Bhagirathi Apartment, F/No. 5C, 5th Bye Lane,
Zoo Narengi Road, Guwahati-781021, Assam.

... Transferee Company

AND

ABHILASHA AGENCIES PRIVATE LIMITED (AAPL)
A Company incorporated under the Companies Act, 1956
(CIN: U51109ML1997PTC013638) having its registered
Office at Pine Mount School, Near NCC Office, East Khasi
Hills, Shillong-793001, Meghalaya.

...Transferor Company No. 1

AND

ANURAG TIE-UP PRIVATE LIMITED
A Company incorporated under the Companies Act, 1956
(CIN: U51109ML2008PTC013629) having its registered
Office at C/O Singla Associates Pine Mount School,
Near NCC Office, East Khasi Hills, Shillong-793001,
Meghalaya.

...Transferor Company No. 2

Order delivered on 20.01.2023

ORDER
[Per se: Shri Prasanta Kumar Mohanty, Member (T)]

1. This Company Petition has been filed by the Applicant Companies under Sections 230 to 232 of the Companies Act, 2013, seeking the following reliefs:

a. To confirm the merger of the Petitioner Companies i.e., Abhilasha Agencies Private Limited and Anurag Tie-Up Private Limited with Singla & Jain (Engineers) Pvt. Ltd.
b. Such further order or orders be made and/or directions be given as this Hon'ble National Company Law Tribunal may deem fit and proper.

2. The registered offices of the Transferor Companies and Transferee Company are situated in the State of Meghalaya and State of Assam respectively, within the jurisdiction of this Bench.

3. From the records, it is seen that the first motion application seeking directions for dispensing with the meetings of Equity Shareholders, Secured Creditors and Unsecured Creditors of the Applicant Companies was filed before this Tribunal vide CA (CAA) No. 7/GB/2022 and based on such joint application moved under Section 230-232 of the Companies Act, 2013, directions were issued by this Tribunal, wherein the meetings of Equity Shareholders, Secured Creditors and Unsecured Creditors of the Transferor Companies and Transferee Company were dispensed with vide Order dated 21.06.2022.

4. Thereafter, the Petitioner Companies filed a second motion joint petition before this Tribunal within the time prescribed under law.

5. Now this Petition is coming up for approval of the scheme as well as for other consequential directions in terms of the provisions of Section 230-232 of the Companies Act, 2013 read with the attendant Rules, i.e., Companies (Compromise, Arrangement and Amalgamation) Rules, 2016 and it is now hereby ordered as follows:

i. The date of hearing of the Petition filed by the Petitioner Companies for the approval of the Scheme is fixed on 16/03/2023.
ii. Notice of the hearing shall be advertised in two Newspapers- “North East Times” in English and “Amar Asom” in vernacular language,

having wide circulation in Meghalaya and Assam, not less than fifteen days before the aforesaid date fixed for the hearing.

iii. In addition to the above public notices, the Petitioner Company shall serve the notice of the Petition on the following Authorities, namely, Income Tax Authorities Concerned (indicating the respective PAN Nos.), ROC NER Guwahati, Official Liquidator and Regional Director, RBI as well as other Sectoral Regulators or authorities, which may govern the working of the Company in the Scheme, at least thirty days before the date fixed for hearing of the above Petition.

iv. Further, notices shall also be served to Objector(s) or the representative(s) as contemplated under Sub-section (4) of Section 230 of the Companies Act, 2013 who may have made representations and who have desired to be heard directly or through their representatives, along with a copy of the Petition and the extracts filed therewith, at least fifteen days before the date fixed for hearing.

v. The Petitioner Companies shall, at least seven days before the date of hearing of the Petition, file an affidavit of service concerning said publication effected as well as service of notice on the authorities mentioned above including the Sectoral Regulator(s) as well as to Objectors, if any.

vi. Objections, if any, to the Scheme, contemplated by the Authorities to whom notice has been given, may be filed on or before the date of hearing fixed herein, failing which it may be considered by this Tribunal that there is no objection on the part of the Authorities to the approval of the Scheme, by this Tribunal, subject to other conditions being satisfied as may be applicable under the Companies Act, 2013 and Regulations/Rules framed thereunder.

vii. The Petitioner Companies shall comply with the proviso to Sub-Section (7) of Section 230 as may be applicable under the circumstances on or before the date fixed for hearing by filing a certificate of the Companies' Auditor.

6. The Registry shall also report before the date fixed as to whether any objection has been received to the proposed 'Scheme'.

Sd/-

(Prasanta Kumar Mohanty)
Member (Technical)

Sd/-

(Deep Chandra Joshi)
Member (Judicial)